

the motion is **granted**.

Plaintiff is advised:

You will not have an attorney representing you. You may wish to seek legal assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

5. 9:00 AM CASE NUMBER: C25-01400
CASE NAME: SHEILA COREY VS. RAYMOND RANGEL
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RANGEL, RAYMOND

TENTATIVE RULING:

Before the Court is Defendant Raymond Rangel, Defendant Bonnie-Dee Rangel, Defendant Kelsey Rangel, and Defendant Amanda Rangel (collectively, "Defendants")'s Demurrer. The Demurrer relates to Plaintiff Sheila Corey ("Plaintiff")'s First Amended Complaint.

Defendants demurrer to Plaintiff's complaint pursuant to Code of Civil Procedure section 430.10 subdivisions (b), (e), and (f) on several grounds.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

In this case, sustaining the Demurrer on the grounds of uncertainty is warranted. The First Amended Complaint is a three-page form complaint which references an unfiled declaration and does not identify any causes of action. The First Amended Complaint alleges with respect to damages "Denied

my Inheritance and denied to receive my Personal property that was stolen.”

The Court is in receipt of Plaintiff’s responsive documents filed on October 28, 2025 and her Motion for Leave to file an Amended Complaint filed March 30, 2026, which includes a form complaint as well as a further responsive argument to Defendants’ Demurrer. However, the Court notes that its analysis on the Defendants’ Demurrer is limited to the operative First Amended Complaint, which in this case is bereft of detail regarding Plaintiff’s claims.

As a consequence, the Court sustains Defendants demurrer, and grants Plaintiff leave to amend.

6. 9:00 AM CASE NUMBER: C25-01904
CASE NAME: BANK OF AMERICA, N.A. VS. MICHAEL ORTIZ
***HEARING ON MOTION IN RE: AMEND JUDGMENT TO CORRECT MISNOMER**
FILED BY: BANK OF AMERICA, N.A.
TENTATIVE RULING:

Good cause shown and no opposition having been filed, the judgment entered on September 29, 2025 is hereby amended to replace “Defendant Steven Ortiz” to the correct name of “Defendant Michael Steven Ortiz.”

7. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: TO COMPLAINT FILED (CONTD FROM 3/4/26 PER TR)
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC’s demurrer to the first amended complaint is **sustained with leave to amend as to Infotechtion International Ltd’s claims against Infotechtion, LLC and otherwise overruled**. Plaintiff has 10 days from notice of entry of the order to file a second amended complaint.

Allegations

Plaintiffs Infotechtion Limited (“UK Company”) and Infotechtion International Ltd (“Holding Company”) sued Defendants Brian Tuemmler and Infotechtion, LLC (“US Company”). Plaintiffs are incorporated in the United Kingdom and Defendant LLC is incorporated in California. Tuemmler is a California resident.

Atle Skjekkeland, Vivek Bhatt, Oxana Travina, and Defendant Tuemmler were partners who owned various companies in Norway, the Netherlands, United Kingdom, United States and India and they worked under the name Infotechtion. (FAC ¶10.) The Partners entered into a new agreement, Founding Agreement 2.0, in February 2020. (FAC ¶11.) Pursuant to the Agreement 2.0, the partners agreed to ownership in a Holding Company with Tuemmler having 10.5% ownership interest. (FAC ¶11.) The partners would be the board of directors of the Holding Company. (FAC ¶12.)